M U T U A L N O N D I S C L O S U R E A G R E E M E N T

This Mutual Nondisclosure Agreement ("Agreement") is entered into effective as of _____ (the "Effective Date"), by and between Palm, Inc. ("Palm"), located at 5470 Great America Parkway, Santa Clara, California 95052, and _____ ("Company"), located at _____ for the purpose of protecting and preserving the confidential and/or proprietary nature of information to be disclosed or made available by each party to the other under this Agreement. Accordingly, the parties agree as follows:

1. Confidential Information

"Confidential Information" means all information, whether written or oral, and in any form (including, without limitation, engineering documents, research and development, manuals, reports, designs, drawings, plans, flowcharts, software (in source or object code), program listings, data file printouts, printed circuit boards, processes, component part listings and prices, product information, new product plans, sales and marketing plans and/or programs, pricing information, customer lists and other customer information, financial information and employee files or other employee information) relating to either party's business or technology which is disclosed by such party either directly or indirectly to the other party. In addition, Confidential Information shall also include the following information:

from Palm: current and future products, roadmaps, conceptual designs and intellectual property.

Confidential Information of Palm shall also include any "Confidential Information" (as defined above) disclosed under this Agreement by or on behalf of Palm's subsidiaries.

from Company: _____

_____

Such information if disclosed in writing shall be marked or identified as confidential or a similar designation, or if orally or visually disclosed, shall be identified as the confidential information of the disclosing party at the time of disclosure and then summarized in writing and provided to the recipient in such written form within thirty (30) days after such oral or visual disclosure.

2. Representatives

The representatives primarily responsible for the disclosure or receipt of the Confidential Information, as applicable, are:

Palm: Paul Leeper, James Taylor, Molly Zemke, Rusti Baker, Claudia Romanini, Stephen McDonnell, Peter Castanon, Steve McGuigan, Erika Mobley, Pete Ellis

Company: _____

3. Limited Use of Confidential Information

The parties agree to use the Confidential Information received hereunder solely for the purpose of engaging in discussions relating to future Palm, Inc. products. The recipient agrees to use the Confidential Information only to the extent necessary to engage in such discussions.

4. Ownership of Confidential Information; Right to Disclose Confidential Information

All Confidential Information is, and shall remain, the property of the disclosing party. Nothing herein shall be construed as granting or conferring any rights by license or otherwise in the Confidential Information except as expressly provided herein. A recipient acquires hereunder only a limited right to use the Confidential Information solely for the purpose set forth in Section 3 above, subject to the terms and conditions of this Agreement. The disclosing party represents and warrants to the recipient that, at the time of disclosure, the disclosing party has the right to disclose the Confidential Information to the recipient and that such disclosure does not violate the rights of any third party.

5. Obligation of Confidentiality

Each party agrees that, for a period of three (3) years from receipt of Confidential Information from the other party hereunder, it shall use the same degree of care and means that it utilizes to protect its own information of a similar nature, but in any event not less than reasonable care and means, to prevent the unauthorized use or the disclosure of such Confidential Information to third parties. The Confidential Information may be disclosed only to employees or contractors of a recipient with a "need to know" who are instructed and agree not to disclose the Confidential Information and not to use the Confidential Information for any purpose, except as set forth herein; provided, however, in the case of Palm, the term "employees or contractors of a recipient" shall include employees and contractors of Palm and its subsidiaries. Recipient shall have appropriate written agreements with any such employees or contractors sufficient to comply with the provisions of this Agreement. A recipient may not alter, decompile, disassemble, reverse engineer, or otherwise modify any Confidential Information received hereunder and the mingling of the Confidential Information with information of the recipient shall not affect the confidential nature or ownership of the same as stated hereunder.

6. Exceptions to Obligation of Confidentiality

This Agreement shall impose no obligation of confidentiality upon a recipient with respect to any portion of the Confidential Information received hereunder which is: (i) now or hereafter, through no unauthorized act or failure to act on recipient's part, in the public domain; (ii) known to the recipient without an obligation of confidentiality at the time recipient receives the same from the disclosing party, as evidenced by written records; (iii) hereafter furnished to the recipient by a third party as a matter of right and without restriction on disclosure; (iv) furnished to others by the disclosing party without restriction on disclosure; or (v) independently developed by the recipient without use of the disclosing party's Confidential Information. Nothing in this Agreement shall prevent the receiving party from disclosing Confidential Information to the extent the receiving party is legally compelled to do so by any governmental investigative or judicial agency pursuant to proceedings over which such agency has jurisdiction; provided, however, that prior to any such disclosure, the receiving party shall (a) assert the confidential nature of the Confidential Information to the agency; (b) immediately notify the disclosing party in writing of the agency's order or request to disclose; and (c) cooperate fully with the disclosing party in protecting against any such disclosure and/or obtaining a protective order narrowing the scope of the compelled disclosure and protecting its confidentiality.

7. Term and Termination

7.1 This Agreement becomes effective as of the Effective Date and shall continue in effect for a period of three (3) years thereafter. The obligations of confidentiality set forth hereunder shall survive such expiration or any earlier termination.

7.2 Either party may terminate this Agreement upon thirty (30) days prior written notice to the other party.

7.3 Either party may also terminate this Agreement immediately by written notice to the other upon any breach by such party of any term or condition of this Agreement.

7.4 Upon the written request of the other party, or upon the expiration or any earlier termination of this Agreement, each party shall promptly return all copies of the Confidential Information, in whatever form or media, to the disclosing party or, at the direction of such party, destroy the same. Each party shall certify in writing to the other such return or destruction within ten (10) days thereafter.

8. No Warranty

Neither party makes any warranty, express or implied, as to any Confidential Information that it may provide hereunder, including without limitation as to the accuracy of the Confidential Information, as to whether any new products will be produced as disclosed, or as to the availability of product(s) on any specific date. A disclosing party may, at its sole discretion, offer such products for sale and may modify them or discontinue sale at any time. A recipient has no obligation under this Agreement to purchase any service or item from the disclosing party.

9. No Obligation Regarding Purpose of Disclosure

The parties expressly agree that the providing of Confidential Information hereunder and discussions held in connection with the purpose set forth in Section 3 above shall not prevent either party from pursuing similar discussions with third parties or obligate either party to continue discussions with the other, to enter into any agreement regarding such purpose, or to take, continue or forego any action relating to such purpose.

10. Severability; Waiver

If any part of this Agreement is held by a court of competent jurisdiction to be illegal or contrary to public policy or otherwise unenforceable, such invalid or unenforceable part shall be deemed modified or eliminated to the extent which, in the court's opinion, is necessary to make the remaining part(s) enforceable. The waiver by a party of any right hereunder will not be considered a waiver thereof unless expressly waived in a writing signed by the waiving party. No single waiver will be considered a continuing or subsequent waiver.

11. Equitable Remedies; Attorney's Fees

The parties agree that there is no adequate remedy at law for any breach of the obligations hereunder and upon any such breach or any threat thereof by either party the other shall be entitled to appropriate equitable relief, including injunctive relief in addition to whatever other remedies it might be entitled. In any action to enforce this Agreement, the prevailing party shall be entitled to recover its reasonable attorney's fees, court costs and related expenses from the other party.

12. Miscellaneous

This Agreement is intended as the complete and exclusive agreement as to the protection of the Confidential Information disclosed hereunder and supersedes all prior proposals, discussions, agreements, or commitments, whether oral or written, between the parties regarding such subject matter. This Agreement may only be modified in writing by authorized representatives of the parties. This Agreement shall be construed in accordance with, and all disputes hereunder shall be governed by, the laws of the State of California but without giving effect to the conflict of laws rules thereunder.

IN WITNESS WHEREOF, the parties have caused this Agreement to be signed by their duly authorized representatives effective as of the Effective Date.

Palm, Inc.	**(Company)**
Signature:_____	Signature:_____
Printed: _____	Printed:_____
Title: _____	Title:_____
Date:_____	Date:_____

Attachment 1 to Mutual NonDisclosure Agreement

Guidelines for handling pre-release Palm products or Palm products under development (collectively, "Pre-Release Products"). Company agrees that it will take the following additional precautions with respect to any Pre-Release Products:

1. With the only exception of pictures for the purpose of obtaining Technical Support from Palm, no pictures of Pre-Release Product may be taken by or for Company without Palm's prior written approval.
2. When any Pre-Release Product is not in use, it will be stored in a locked and secure location.
3. Pre-Release Product will not be taken into any public areas, nor will it be removed from Company's premises.

(Company)

Signature:_____

Printed: _____

Title: _____

Date:_____